



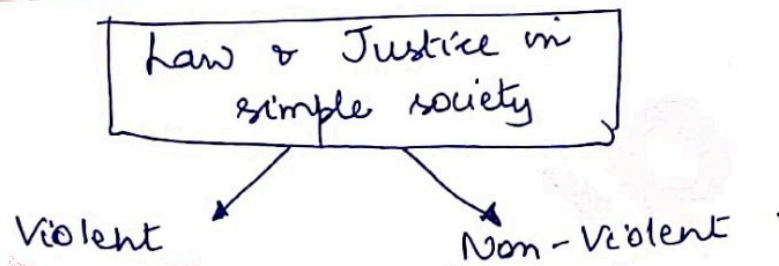
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2.c)

Discuss the nature of Law and Justice in simple societies citing suitable examples. (15 marks)

Law and Justice in simple societies is slightly different.

LOWIE classified Law and Justice in simple societies using:



Non-Violent Method

① Avoidance: In avoidance the resolution of dispute avoided to prevent confrontation. (Ex) !Kung Bushmen.

② Community Resolution: It is done by community using various mediation. (Ex) Song duels in Eskimos.

③ Radcliffe-Brown gives the concept of organized & diffused sanctions.
 organized sanction → organized response of society.
 diffused sanction → spontaneous response

④ Social Sanctions :-

positive sanction (Rewards) Negative sanction (Punishment)

⑤ Adjudication by village councils and chiefs like Big Men.

⑥ Oath and Ordeal :-

Oath → promise made in the name of divine. e.g. Sorghal Oath

Ordeal → Task needs to be performed to prove innocence.

En) Mundas need to lick hot iron three times in front of sacred stream.

⑦ Fear of supernatural :-

In Age-set societies law and justice established through fear of supernatural.

En) Masai - tribe.

Violent Means

① Blood feud in Nuer :

In Nuer killing of an individual from other lineage needs to be compensated.

ated with killing from own lineage
to establish balance.

② Raids

③ Confiscations etc

④ Withcraft

Thus law and Justice in simple society differs from modern societies.

Contemporary Relevance

In Indian constitution as well, the 6th schedule contains the provision of settlement of disputes and adjudication based on the personal laws.

Structure

Intro : Explain LGJ

Body : Part I : Nature of Law

-- sanctions, Repressive, Supernatural etc.

Part II : Nature of Justice

Identification of wrong doer

1) Acceptance

of other's order

Justice Delivery

- 1) Peaceful Means - good for Negotia
- 2) Violent Means